D. Consumer Commission complaint — preparation draft

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PREPARATION DRAFT ONLY. Consumer Commissions have their own format, affidavit and document requirements, and complaints are filed through e-Jagriti (e-jagriti.gov.in). Use this to organise your facts; check the portal's requirements, and consider asking an advocate or a recognised consumer association to review it before filing.

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION, Jaipur

Consumer Complaint No. _____ of 20___ (to be assigned)

IN THE MATTER OF:

Anil Kumar, [ADD: full address], Jaipur — Complainant

VERSUS

1. CoolHome Appliances, [MISSING: seller's registered address (from the invoice / platform seller page)] — Opposite Party No. 1
2. HomeKart, [MISSING: platform's registered office address] — Opposite Party No. 2

COMPLAINT UNDER SECTION 35 OF THE CONSUMER PROTECTION ACT, 2019

1. The Complainant is a consumer

The Complainant bought the goods for consideration through an online transaction for personal use and is a 'consumer' under Section 2(7) of the Consumer Protection Act, 2019.

2. Facts of the case

1. On 28 September 2026, I placed an order for front-load washing machine on HomeKart, sold by CoolHome Appliances (Order ID: HK-99812-AB) and paid ₹25,000.
2. The product was delivered on 2 October 2026. After delivery it developed a defect. In my words: “It was delivered on 2 October 2026. Within 10 days the drum stopped spinning and it shows error code E21.”
3. I raised the matter with the seller/platform on 13 October 2026 (reference: HKT-30211). What I did: “I raised a replacement request in the HomeKart app on 13 October 2026. A technician from the brand visited on 15 October and gave a job sheet saying the motor is faulty. On 18 October the seller rejected the replacement request.”
4. The response I received: “The seller refuses to replace it and says I should contact the brand service centre.”
5. As of 7 November 2026, the matter remains unresolved and I have not received the replacement I asked for.

3. Grounds

1. The goods supplied suffer from a defect within the meaning of Section 2(10) of the Consumer Protection Act, 2019, which is a ground of complaint under Section 2(6)(ii).
2. Under Rule 6(3) of the Consumer Protection (E-Commerce) Rules, 2020, a seller on a marketplace shall not refuse to take back goods or refund the consideration where the goods are defective. Where the platform itself is the seller, Rule 7(4) imposes the same duty.

4. Cause of action

The cause of action arose on 28 September 2026 when the order was placed, and further on 2 October 2026 and on each date the Opposite Parties failed to resolve the complaint, and it is continuing.

5. Jurisdiction

Pecuniary: the value of goods paid as consideration is ₹25,000, which does not exceed ₹50 lakh; this Commission has jurisdiction under Rule 3 of the Consumer Protection (Jurisdiction of the District Commission, the State Commission and the National Commission) Rules, 2021.

Territorial: the Complainant resides / personally works for gain at Jaipur, within the limits of this Commission (Section 34(2)(d) of the Act).

6. Limitation

The complaint is filed within two years of the cause of action, as required by Section 69 of the Consumer Protection Act, 2019.

7. Prayer

The Complainant respectfully prays that the Hon'ble Commission may direct the Opposite Parties, jointly and/or severally, to:

1. Replace the front-load washing machine with a new, defect-free unit of the same description.
2. Pay interest on the amount refunded and the costs of this complaint, as the Hon'ble Commission may deem fit.
3. Grant any other relief the Hon'ble Commission considers appropriate.

8. List of documents

- Annexure A-1: Invoice / bill
- Annexure A-2: Warranty card / warranty terms
- Annexure A-3: Technician / service-centre report (job sheet)
- Annexure A-4: Photographs of the product / damage
- Annexure A-5: Complaint / ticket reference number

9. Verification

I, Anil Kumar, the Complainant, state that the facts above are true to my knowledge and belief. [ADD: place, date and signature; affidavit as required by the Commission]

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